

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2024CUPA021037: JOSE ANDRES ZARATE, JR., et al. vs CODY GARRETT ZORNES,
et al.**

**08/26/2026 in Department 40
Motion to Consolidate**

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

The Court intends to rule as follows:

Plaintiff's Motion to Consolidate is GRANTED.

The Court orders consolidation of the following cases for all purposes, including trial: (1) *Zarate, et al. v. Zornes, et al.*, Case No. 2024CUPA021037; (2) *Alvarez v. Granite Construction*, Case No. 2024CUPA023309; (3) *Garcia v. Zornes*, Case No. No. 2025CUPA040774; (4) *Zimmerman v. Zornes*, Case No. 2025CUPP042367; (5) *Hoyos v. Zornes*, Case No. 2025CUPA043545 and (6) *Interinsurance Exchange of the Automobile Club v. Zornes*, Case No. 2025CLPA052392.

The case *Jose Andres Zarate v. Cody Garrett Zornes*, Case No. 2024CUPA021037 is designated as the Lead Case.

Notice to be provided by the moving Defendants.

I. Background

The instant Motion to Consolidate Actions involves the following six lawsuits.

Zarate, et al. v. Zornes, et al., Case No. 2024CUPA021037: The Complaint was filed on February 23, 2024, by Plaintiffs Jose Andres Zarate, Jr. and Olivia Michelle Zarate against Defendants Cody Garrett Zornes, Airdraulics, Inc, Dan Tracey, Devin J. Travey, State of California, California Department of Transportation [Caltrans] and Granite Construction Company, pleading claims based on wrongful death and survival based on the following causes of actions: (1) negligence, (2) motor vehicle negligence, (3) negligent hiring/supervision/training and/or retention of employee, (4) premises liability and (5) dangerous condition of public property. The Complaint alleges as follows. On or about May 15, 2023, decedent Jose Andres Zarate Virgen was traveling northbound on Highway 101 in the number one lane intending to travel from Ventura to Santa Barbara. He was driving a 2002 Toyota Tacoma. He brought this vehicle to a stop at a location approximately .2 miles south of the Dulah Road overpass adjacent to Solimar Beach and Mondos Beach. Defendant Zornes, while in the course of his employment with Airdraulics and operating a 2012 Ford F-550 commercial truck, violently struck the rear of Virgen's vehicle leading to Virgen's death due to explosion and fire. At the time of the collision, Caltrans had contracted with Granite to undertake a repavement project one mile north of the

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crash site. The project was the cause of the traffic backup that led to Virgen's death. Plaintiffs are the children of decedent Virgen.

Alvarez v. Granite Construction, Case No. 2024CUPA023309 : The Complaint was filed on April 9, 2024, by Plaintiff Ma Del Rocio Virgen Alvarez against Defendants Granite Construction Company, Cody Garrett, Airdraulics, Inc., Dan Tracey, Devin J. Tracey, and the State of California Department of Transportation, pleading causes of action for (1) negligence, (2) motor vehicle negligence, (3) negligent hiring, supervision, training and/or retention of employee, (4) premises liability and (5) dangerous condition of public property. The Complaint alleges that Plaintiff is the wife of decedent Jose Andres Zarate Virgen. On May 15, 2023, decedent Virgen was killed when the vehicle driven by Zornes, while in the employment of Airdraulics, caused his commercial truck to collide with Virgen's vehicle leading to an explosion. Decedent's vehicle was stopped at the time of the incident due to the road improvement being undertaken by Granite and the State of California.

Garcia v. Zornes, Case No. No. 2025CUPA040774: The Complaint was filed on March 20, 2025, by Plaintiff Cesar Fernandez Garcia against Defendants Cody Garrett Zornes and Airdraulics, Inc. pleading causes of action for (1) general negligence, (2) motor vehicle and (3) negligent entrustment. The Complaint alleges that on May 15, 2023, plaintiff Garcia was harmed after the vehicle operated by Zornes while entrusted with a vehicle by Airdraulics, Inc., caused a multivehicle crash that caused plaintiff's personal injuries and other damages.

Zimmerman v. Zornes, Case No. 2025CUPP042367: The Complaint was filed on April 18, 2025, by plaintiff Aaron Zimmerman against defendants Cody Zornes, Airdraulics, Inc., Dan Tracey, and Granite Construction Company, pleading causes of action for (1) MVA, (2) general negligence and (3) premises liability. It alleges that on May 15, 2023, Zornes, while in the course and scope of his employment with Airdraulics, caused a rear end crash at a high speed that caused a collision with plaintiff, thereby injuring plaintiff and causing additional damages. Defendant Granite was in control of the area of Highway 101 where the incident occurred.

Hoyos v. Zornes, Case No. 2025CUPA043545: The Complaint was filed on May 2, 2025, by plaintiff Kiana Hoyos against defendants Cody Garrett Zornes and Airdraulics, Inc., pleading causes of action for (1) motor vehicle and (2) general negligence. The Complaint alleges that on May 15, 2023, while driving northbound on US-101 and while in a complete stop, defendant Zornes negligently caused a chain reaction collision that caused plaintiff's vehicle to be rear ended and injuries to her.

Interinsurance Exchange of the Automobile Club v. Zornes, Case No. 2025CLPA052392: The Complaint was filed on October 10, 2025, by plaintiff Interinsurance Exchange of the Automobile Club against defendants Cody Zornes and Airdraulics, Inc., pleading a cause of action for subrogation. The Complaint alleged that it is the insurance company that provided coverage for Jose Guerrero. On May 15, 2023, defendants caused a vehicular collision that required plaintiff to pay its insured Guerrero, the amount of \$27,131.48.

On May 8, 2025, the court consolidated the cases *Jose Andres Zarate v. Cody Garrett Zornes*, Case No. 2024CUPA021037 with *Ma Del Rocio Virgen Alvarez v. Granite Construction*

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Company, Case No. 2024CUPA023309, and designated *Jose Andres Zarate v. Cody Garrett Zornes*, Case No. 2024CUPA021037 as the Lead Case.

On May 19, 2026, the Court ordered all cases identified above to be related under California Rules of Court, rule 3.300(h) and assigned to Department 40.

On June 22, 2026, Defendants Zornes, et al., filed this Motion to Consolidate. On July 14, 2026, moving Defendants filed a Notice of Non-Opposition. On July 21, 2026, the hearing on the motion was continued to August 26, 2026, pursuant to a stipulation of the parties which permitted Defendant the People of the State of California (the “State of California”) to file an opposition. On August 18, 2026, the State of California filed the Opposition. On August 20, 2026, moving Defendants filed a Reply.

II. Discussion

Code of Civil Procedure section 1048 states:

(a) When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.

(b) The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.

“Code of Civil Procedure section 1048 grants discretion to the trial courts to consolidate actions involving common questions of law or fact. The trial court’s decision will not be disturbed on appeal absent a clear showing of abuse of discretion.” (*Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-979.)

The pleadings and the Traffic Collision Report prepared by the California Highway Patrol MAIT Team (Wilson Dec., ¶ 14, Exhibits A-F, H) demonstrate that each of the cases that moving Defendants seek to consolidate involve the same May 15, 2023 multivehicle collision allegedly caused by Defendant Zornes while employed by Defendant Airdraulics, Inc. During the collision, decedent Zarate was killed and various plaintiffs suffered personal injuries and damages. Consequently, there are common questions of facts.

All plaintiffs plead claims against defendant Zornes and defendant Airdraulics. In certain cases, however, plaintiffs additionally plead premises liability claims against defendant Granite Construction and/or the State of California. Defendant State of California therefore argues that the claims against Granite Construction and the State of California do not raise common questions of law and fact with the claims by plaintiffs against defendants Zornes and Airdraulics.

In particular, the State of California argues that the wrongful death claims do not share common questions of law and fact with the personal injury actions.

Consolidation may be denied where a party is prejudiced or forced to argue contradictory positions. (See *State Farm Mutual Automobile Ins. Co. v. Superior Court (Herrick)* (1956) 47 Cal.2d 428, 432.) In another case, however, the Court of Appeal stated: “We can see no prejudice to defendants’ substantial rights in the consolidation of the two actions. Practically all of the contentions made by defendants have been answered adversely by the decisions. The fact that evidence in the one case might not have been admissible in the other does not bar a consolidation.” (*Jud Whitehead Heater Co. v. Obler* (1952) 111 Cal.App.2d 861, 867.) Moreover, “[a] public entity may be liable for a dangerous condition of public property even when the immediate cause of a plaintiff’s injury is a third party’s negligent or illegal act (such as a motorist’s negligent driving), if some physical characteristic of the property exposes its users to increased danger from third party negligence or criminality.” (*Castro v. City of Thousand Oaks* (2015) 239 Cal.App.4th 1451, 1457-1458.) Thus, the courts have recognized that both separate liability by a public entity and a third party may occur in a situation similar to this case and under *Jud Whitehead Heater Co. v. Obler, supra*, 111 Cal.App.2d 861, the fact that there may be some dissimilarities in the cases does not bar consolidation.

The Court finds that consolidation is appropriate here because the cases raise common questions of law and fact, the cases have already been related, discovery has already been coordinated, five of the six cases are already set for trial on the same date in the same courtroom (with the sixth case being the subrogation lawsuit), only one opposition was filed, and consolidation will serve the goals of judicial economy. The Court can provide instructions to the jury as necessary to avoid confusion. Therefore, the motion is GRANTED.

Since *Jose Andres Zarate v. Cody Garrett Zornes*, Case No. 2024CUPA021037 is the earliest filed case, it is deemed the Lead Case.